

C A P. V.

The Honourable Court of Star-Chamber, *coram Rege et Concilio suo*: Of ançient Time, *coram Rege in Camera*, &c.

That it is an eminent court proved by records and acts of parliament.

^a 22 Lib. ass. pl. 52.

^b Rot. pat. 1 part. m. 12. *Fraud and falsehood.*

^c Rot. pat. 1 part. m. 13. *Falshood in an officer and raising of a record.*

^d Rot. clauf. 41 E. 3. m. 8. in dorf. *Vid. rot. pat. 2 R. 2. 1 part. m. camera stellata. for raising.*

12 R. 2. cap. 11. *dev. le council.*

^e Rot. clauf. 41 E. 3. Cambd. Brit. 130.

^f Rot. clauf. 16 R. 2. in dorf. m. 11.

^g Pat. 6 H. 5. & consimile anno 7 H. 5. pro manerio de Fish-erwicke in Com. Norff.

IN ^a the 28 year of the reign of E. 3. it appeareth, that the returns *coram nobis*, are in three manners, *coram nobis in camera* (which, it is said, was afterwards called *camera stellata*.) 2. *Coram nobis ubicunque fuerimus in Anglia*, which is the kings bench; and *coram nobis in cancellaria*. And of all the high and honourable courts of justice, this ought to be kept within his proper bounds and jurisdiction.

^b In 38 E. 3. *coram rege et concilio*, John Redland complained of Robert Spinke for delivery of prisoners upon false suggestion made to the king: upon hearing the cause, the defendant was acquitted, the plaintife imprisoned.

^c In 39 E. 3. Ralph Brantingham one of the chamberlains of the exchequer complained before the king and his councill of Richard Cesterfield clerk deputy of the kings treasurer, in the receipt for divers allowances, payments, &c. unduly made, and for raising of records, &c. Upon the hearing of the cause by the whole councill, the defendant was acquitted, and the plaintife removed from his office. and committed to prison.

^d The abbot de Bruera, and Ragge his monk sentenced *coram rege et concilio*, for raising of letters patents, and inserting other words: and the letters patents by sentence cancelled.

^e In anno 41 E. 3. in a bill of complaint exhibited to the king by Elizabeth the widow of Nicholas Awdeley plaintife, against Jane Awdeley defendant, who appeared before the kings councill, viz. the chancellor, treasurer, justices, and others assembled *en la chambre des estoils pres de la receits*.

^f A suit depending before the king and councill between the abbot of Saint Austen of Canterbury and others concerning wrecks, &c. The abbot brought his action at the common law against the parties, who being thereupon arrested and imprisoned, the sheriffe was commanded by the kings writ to deliver them, and to forbear to serve any other proces against them; and the reason there yielded is notable, *Quia non est juri consonum, aut honestum, quod aliquis de hiis quæ coram nobis et concilio nostro in discussione pendunt, alibi inde interim placitari debeat, aut apparere.*

^g A suit depending before the king and his councill, between W. G. of the one part, and H. S. of the other part: a sequestration is ordered for the preservation of the things in question.

In

^a In 17 H. 6. an inrolment of a confession of John Ford of Lon. mercer before the lord treasurer and others of the kings counsell in the star chamber for the * fraudulent packing and transporting of wooll, with a writ to the sheriffe of London to set him on the pillbry.

^b Rot. clauf.
17 H. 6.

The abbot of Westminster exhibited his bill to the king against the sheriffes of London for arresting and drawing out with force a privileged person out of the sanctuary of S. Martins le grand belonging to the said abbey: which matter after due proceedings being heard in the court of star-chamber before the lords and others of the kings counsell, and Hodey and Newton chief justices, which justices determiniing, that by law the party ought to enjoy the privilege of sanctuary, the sheriffes were grievously fined in the star-chamber by particular name: which sentence the lord Dier, as he hath reported under his own hand, saw upon a reference to him and justice Southcote out of the star chamber, Trin. 11 *regine Eliz.* concerning the sanctuary of Westm. for Hampton and Whitacres being in for debt. And the lord Dier made this note with his own hand. *Nota, per le star-chamber.* And this is a notable proof of the jurisdiction of the court for fining, &c. That the bill was exhibited to the king, and that the two chief justices then did sit, and were judges (amongst others) in that court.

Anno 29 H. 6.
Trin. 1. Eliz.
Dier. manuscript
not imprinted.

For divers riots, extortions, oppressions, and grievous offences by divers persons done against the kings peace and lawes, to divers of his liege people, commandement hath been given by the kings writs under the great seale (which continue untill this day) to appear before the king in the chancery, or before him and his counsell at certain dayes to answer to the premisses, which commandement hath been many times disobeyed. Provision is made by that act for the punishment of such disobedience, as by that act appeareth. True it is, that this act was but temporary, yet it affirmeth so much as before hath been said,

Stat. de 31 H. 6.
cap. 2.
Vide Rot. parl.
1 H. 6. nu. 41.

Anno 35 H. 6. A writ of *certiorari* was directed: *Thomæ Kent clerico pacis: volentes certis de causis certiorari super tenorem cujusdam actus Pasch. ultime præterito apud Westm. in camera stellata concernent Johannem ducem Norff.* And see there proces of rebellion against the laid duke.

Ex bundello brevium regis.
35 H. 6.

Robert Davers a counsellor at law by bill exhibited to the king, &c. for defamation of raising a record. And the said Robert by the kings counsell in *camera stellata* was acquitted, and John Broket that made the rasure sentenced.

Rot. clauf.
11 H. 6.

The kings counsell assembled in the star-chamber. The lord Cromwels case.

Rot. clauf.
28 H. 6.

An order in the star-chamber for the duke of Yorks counsell to have accesse to him, because called into the chamber by privy seale, &c.

Rot. pat. 32 H. 6.
m. 20.

An exemplification of a complaint by Richard Heron against John Prout, *coram rege et consiliariis suis in camera stellata*, for a great misdemeanour concerning wools.

Pat. 3 E. 4. part. 1.

Anno 8 E. 4. proceeding by English bill, answer, replication, &c. *coram rege et concilio.*

Rot. petit. 8 E. 4.

Anno 20 E. 4. a sentence in the star-chamber for turbulent and undue elections between the abbot of Bury and the inhabitants.

Rot. pat. 20 E. 4.
part. 2.

We

We have omitted many other records, but because they be of like nature we have contented our self with these. And now we will consult with our book cases, and reports of law: wherein either *coram rege et concilio*, or *coram rege et concilio in camera stellata*, is named.

Book cases and reports of law.

39 E. 3. fo. 14. 19 aff. pl. 1. 40 aff. 38. 13 E. 4. 9. *in camera stellata*. Vid. 27 E. 3. cap. 13. 21 E. 4. 71. *in camera stellata*. 2 R. 3. fo. 2. & 11. *in camera stellata*. 1 H. 7. 3. *in camera stellata*. This court in ancient times sat but rarely, for three causes. First, for that enormous and exorbitant causes which this court dealt withall only in those days rarely fell out. Secondly, this court dealt not with such causes, as other courts of ordinary justice might condignely punish, *ne dignitas hujus curiæ vilesceret*. Thirdly, it very rarely did sit, lest it should draw the kings privie council from matters of state, *pro bono publico*, to hear private causes, and the principall judges from their ordinary courts of justice.

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3 H. 7. ca. 1.

That which now is next to be considered in *serie temporis* is the statute of 3 H. 7. the letter whereof followeth:

21 H. 8. ca. 20.
The president of
the kings coun-
cell added.

It is ordained that the chancelour and treasurer of England, and the keeper of the kings privy seal, or two of them, calling to them a bishop and a temporal lord of the kings most honourable privy counsell, and the two chief justices of the kings bench and common place for the time being, or other two justices in their absence, upon bill or information put to the said lord chancelour or any other against any person for unlawfull maintenance, giving of liveries, signs and tokens, and reteyners by indentures, promises, oaths, writings or otherwise, imbraceries of his subjects, untrue demeaning of sherifs in making of pannels, and other untrue returns, by taking of mony, by injuries, by great riots, and unlawfull assemblies, have authority to call before them by writ or privy seale the said misdoers, and they and other by their discretion, by whom the truth may be known to examine, and such as they find therein defective, to punish them after their demerits, after the form and effect of statutes thereof made in like manner and form as they should, and ought to be punished, if they were thereof convicted after the due order of law.

Camden Brit.

Camera stellatae auctoritatem prudentissimus princeps Henricus septimus ita parliamentaria adauxit et constabiliavit, nonnulli primum instituisse falso opinantur.

Upon this statute and that which formerly hath been said, these fix conclusions do follow. The first conclusion is, that this act of 3 H. 7. did not raise a new court: for there was a court of star-chamber, and all the kings privy council judges of the same. For if the said act did establish a new court, then should those four or any two of them be only judges, and the rest that they should call to them should be but assistants, and aidants, and no judges: for the statute of 31 E. 3. cap. 12. which raiseth a new court, and before